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Provision of June 6, 2024
Register of provisions
n. 342 of June 6, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by Prof. Pasquale Stanzione, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (decree law 30 June 2003, n. 196), as amended by decree law 10 August 2018, n. 101, containing provisions for the adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000, adopted by resolution of June 28, 2000;

REPORTING Prof. Pasquale Stanzione;

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT
1.1. Premise
With communication dated December 28, 2023, n. 170450/23 (notified on the same date via certified electronic mail), which is to be understood as fully reproduced here, the Office initiated, pursuant to Article 166, paragraph 5, of the Code, a procedure for

the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation against Eni Plenitude S.p.A. Società Benefit (hereinafter "Eni Plenitude" or the "Company"), represented by the legal representative pro tempore, with registered office in San Donato Milanese (MI), Piazza Vanoni n. 1, VAT number 12300020158.
The procedure originates from an investigation initiated by the Authority, following the transmission of 108 reports and 7 complaints against the Company, regarding the receipt of unwanted promotional calls made without prior acquisition of the consent of the interested party or using numbers registered in the Public Opposition Register (hereinafter, "RPO").

For the purposes of adopting this provision, the Authority duly took into account the appreciable measures of compliance with the regulations on the protection of personal data implemented in accordance with the corrective and sanctioning measures imposed by provisions n. 231 and 232 of December 11, 2019, adopted against the Company for having carried out unlawful processing of personal data in the context of promotional activities and unsolicited activation of energy supplies (both available for consultation on the website www.gpdp.it, doc-web n. 9244358 and 9244365).

1.2. The conduct of the investigation and the requests for information made by the Authority

1.2.1. The request for information pursuant to Article 157 of the Code

By note dated April 6, 2023, the Office transmitted to Eni Plenitude a cumulative request for information formulated pursuant to Article 157 of the Code (see prot. n. 58836/23), useful for the evaluation of 108 reports and 7 complaints received by the Authority during the period from September 2021 to March 2023, mainly concerning the subject of telemarketing. With the same note, the Company was requested to “provide a

list of purchase proposals coming from its sales network that led to the activation of energy services during the period from March 6, 2023, to March 13, 2023, inclusive, divided between ‘residential’ and ‘business’,” as well as any evidence that emerged in relation to report n. 162187, with which the Company had brought to the Authority's attention the phenomenon of so-called “suspicious calls.”

With a subsequent note dated May 11, 2023 (see Prot. n. 75644/23), the aforementioned request was retransmitted to the holder, since following internal checks and in light of the feedback provided by the DPO of the Eni Group, the Office was able to ascertain that, due to a mere error, the communication had not been sent to the Company.

With an initial response dated May 26, 2023 (see Prot. n. 84539/23 of May 29, 2023), Eni Plenitude transmitted the list of purchase proposals coming from its sales network and solicited by a phone contact with the customer, collected through the following channels:

• “Outbound Teleselling”: call centers contact customers and potential customers (so-called prospects) based on lists of personal data provided or authorized by Eni Plenitude;
• “Comparator”: partners who, through their own

comparison website and/or structured web activities, gather the interest of prospective customers, with whom they subsequently carry out telephone recontact to illustrate the commercial offers of the various suppliers subject to comparison;
• “Web Assisted”: call centers recontact by phone customers/prospects who have previously expressed the desire to receive an illustration of a commercial proposal from Eni Plenitude by filling out specific forms available on the Company’s website.
With specific reference to the request to provide the IP address of the workstation that uploaded the contractual proposals, the Company stated that at the time of notification of the request for information pursuant to Article 157 of the Code, such type of data was not being tracked and that, following the approval of the Code of Conduct for telemarketing and teleselling activities, the Company "has initiated a working group aimed at evaluating the most effective measures to ensure compliance with the provisions of the Code, among other things, with reference to the traceability of operations carried out on the platform for the registration of contract proposals."

In a subsequent note filed on June 9, 2023 (see prot. 91502/23 of June 12, 2023), the Company transmitted the first deductions regarding the majority of the reports and complaints subject to the present investigation, classifying the responses into 5 macro-categories:
• “Legitimate Contact” - the telephone contact was legitimately made by partners of the Plenitude network. To this end, a verification of the reporter's name was first conducted on the CRM and campaign operation systems (CoEVO), the latter used to track telephone contacts made by partners of the Plenitude network; subsequently, the privacy consents granted by the reporter were examined and tracked on the CRM for customers and former customers within 2 years and on CoEVO for prospects.
• “Suspicious Third-Party Calls” - the calling number is not present in the Register of Communication Operators (ROC), nor is it associated with partners of the Plenitude network in the Company's internal systems (see CoEVO). The company checks whether the calling number is present in the internal list prepared by the fraud team as part of monitoring the phenomenon of suspicious calls (see Internal List of Suspicious Calls) and whether there are any reports related to the calling number on the web pages dedicated to evaluating numbers used for telemarketing and/or teleselling activities (see “Online Reports”). Unsolicited telephone contacts made by certain subjects with the aim of proposing to consumers to change providers, presenting erroneous and/or even misleading assumptions, are classified as suspicious.
• “FUB Process in Activation” – this category includes contacts made to prospect lists during the adjustment period to the RPO regulations. The Company stated that "the process has been progressively initiated to be fully activated starting from August 29, 2022, for prospect lists" (see response of June 9, 2023).
• “Lack of Sufficient Information to Conduct Verifications” - the report does not contain sufficient information to allow for the verification of the contact's connection to the Eni Plenitude network.
• “Analysis to be Completed”.

In the same note, the Company highlighted that regarding the majority of the files falling under the macro-category “suspicious third-party calls,” the calling numbers are repeated in multiple reports/complaints and are not registered in the ROC, nor are they present in the CoEVO system. Furthermore, these calls have often been made in conjunction with promotional campaigns launched by Eni Plenitude itself, or in the immediate subsequent period. Regarding these reports and complaints, the owner expressed the intention to blacklist all the numbers indicated therein.

Regarding the phenomenon of suspicious calls, the Company also highlighted that starting from February 2020, an internal working group, overseen by the Fraud Team, has been established to continuously monitor reports concerning cases of suspicious calls and to compile an internal list of calling numbers. From the analysis of data derived from this monitoring activity, it emerged that from 2021 to 2023, the cases falling under the phenomenon of suspicious calls have significantly decreased. Additionally, starting from 2021, Eni Plenitude has created specific channels to facilitate the reporting of the contacts in question (see toll-free number 800.689.829; chat; dedicated forms).

In the same note, the company provided further updates regarding report no. 162187, through which Eni Plenitude brought to the attention of the Authority the phenomenon of suspicious calls following improper telephone contacts received from internal subjects and the legal actions taken.

Subsequently, with note Prot. 98297 of June 23, 2023, the Office again transmitted to the company file no. 186509. This document transmission had been repeatedly requested by the company in the aforementioned responses, despite the files having already been transmitted along with the request for information pursuant to Article 157 of the Code. In the same note, the Office acknowledged the owner's intention "to send two separate responses, the second well beyond the originally indicated deadline," highlighting that "any extensions are only permitted upon submission of a specific motivated request to be presented to the Authority, which then evaluates the extent and reasons" and inviting, therefore, the company to transmit the requested information without further delay.

Subsequently, in a response dated June 29, 2023 (see Prot. 101486 of June 30, 2023), the owner transmitted the results of the overall examination conducted on the cases subject to complaint, classifying the reports and complaints as follows:
- 71% of the complaints classified as “calls
"third-party complaints";
- 13% of complaints classified as "legitimate contact";
- 7% of complaints classified as contacts made during the process of compliance with the RPO regulations;
- 2% of complaints classified as cases of lack of information to provide adequate feedback;
and adding the following additional categories:
- 3% of complaints classified as "contacts not made on behalf of Eni Plenitude" (see "the telephone contact reported by the complainant was made from numbers belonging to a partner of Plenitude but on behalf of other clients or in the context of contact activities carried out independently by the partner itself");
- 3% of complaints classified as contacts made using the so-called spoofing technique (see "despite the calling number indicated in the report/complaint being registered with the ROC and appearing on CoEVO as a number associated with a partner of Plenitude, the telephone contact indicated was not made by the Plenitude partner to which that number refers. It is therefore reasonable to hypothesize that these are cases of so-called spoofing and that the calling number has been falsified to correspond to numbers regularly used by Plenitude partners");
- 3% of complaints classified as "illegitimate contacts" (see "the contact was made by employees of Plenitude partners in violation of the instructions received from the partner and from the Company itself. In all these cases, those responsible have been removed from the partner as soon as the irregular conduct was detected, even before Plenitude received the request for information from the Authority. Additionally, Plenitude has activated the process for the application of a penalty to the involved partners, as provided for in the agency contract with them, for the conduct carried out by their employees in violation of Plenitude's instructions");
- 1% of complaints as "feedback already provided to the interested party" (see "Plenitude has already provided its feedback to the interested party, directing the request to XX for further integrations (as these were contacts made as part of a co-marketing campaign XX/Plenitude aimed at the customer base of XX)").
In the same feedback note, the Company illustrated the procedure implemented in compliance with the corrective measures prescribed by the Authority through Provision No. 232/2019 regarding the purchase of contactability lists of prospect users from list providers.
Eni Plenitude has therefore declared that it relies on two list providers, who act as data processors

pursuant to Article 28 of the Regulation and who manage the acquisition of lists from publishers. These suppliers also take care of the subsequent "normalization" of the data to verify its compliance with the privacy compliance requirements identified by Eni Plenitude, before the lists are uploaded to the Company's CoEVO system for processing. The privacy notice of the publishers contains an explicit reference to Eni Plenitude, and the consent possibly granted is "considered valid only if collected based on a privacy notice that has such characteristics."
All records contain the consent form used by the publisher, the code of the related privacy notice, the IP address of the interested party who granted consent, as well as the date on which consent was granted. The CoEVO system verifies that all records are complete, and in case of a negative outcome, they are blocked and subsequently deleted from the system.

Before the lists are acquired and uploaded to CoEVO, Eni Plenitude verifies the compliance of the privacy notices and the associated consent forms, and, in case of a positive outcome, approves the list.
The Company, with the help of the CoEVO application, conducts sample checks on the records (privacy notice and consents collected) contained in the contactability lists of the publishers. In case of a negative outcome, the use of the related records is prohibited, and a specific audit on the publisher is initiated.
The lists of prospect users are also subject to verification at the RPO before the campaign starts and every 14 days, to ensure that only interested parties who have not requested registration with the Public Register of Oppositions are contacted.
1.2.2. Verification at the Public Register of Oppositions
In order to carry out the necessary checks regarding the correctness of the aforementioned telemarketing activities, on August 3, 2023 (see Prot. No. 117145/23), the Office sent to the Ugo Bordoni Foundation, which manages the Public Register of Oppositions, the aforementioned list of telephone numbers contacted by Eni Plenitude in the context of telemarketing activities carried out during the period of February-March 2023. In this regard, information was requested, pursuant to Article 157 of the Code, for each number regarding any registration with the Public Register of Oppositions (RPO) not subsequent to January 31, 2023.
With note Prot. No. 122099 of August 29, 2023, the aforementioned Foundation sent its feedback, from which it emerged that 746 telephone lines were registered with the Public Register of Oppositions at the time of the promotional calls made by the Company, corresponding to just over 7% of the total number of telephone contacts that have..."
determined the activation of the service during the reference period of February-March 2023 (no. 10625).

1.2.3. Supplement to the Investigation
During the investigation, further complaints of the same nature and content were received by the Office (cf. files nos. 286608 - 314553 - 322104 - 315372 - 328844).
In particular, with complaint no. 286608, the complainant reported receiving approximately 248 promotional phone calls since January 2023 on a number registered with the RPO, highlighting that "the situation is intolerable, also because being a work number, I often have to interrupt myself to answer, even though I have activated filters" and that they had filed a complaint with the competent authorities. In this case, the complainant claims to have been subjected to unsolicited activations for months and that, in addition to their personal data and identity documents, the personal data of their partner has also been stolen or otherwise transferred by Eni Plenitude to call centers.
With report no. 314553, the interested party complained about receiving numerous calls made for promotional purposes, despite being registered with the RPO.
Regarding file no. 322104, the complainant stated that they were first contacted by an Eni Plenitude operator – who was already unlawfully in possession of their personal data – and were induced to accept a non-binding proposal related to an energy supply. In the days immediately following, the interested party received further phone contacts for the marketing of an insurance policy from operators unlawfully aware of their personal data and personal circumstances.
With report no. 315372, the interested party complained about receiving numerous unwanted calls

made on behalf of Eni Plenitude. The Company responded to the complaint noting that the interested party had consented to receive calls for promotional purposes and for conducting market research by Eni Plenitude; furthermore, the indicated calling number belonged to a partner tasked with carrying out promotional activities. The data controller acknowledged and recorded the revocation of consent in their systems.
Finally, with report no. 328844, the interested party complained about being contacted by phone on behalf of the Company, despite having changed service providers.
Considering that the complaints in the aforementioned files were directed towards the same data controller and concerned issues of the same nature, in order to promote a comprehensive examination and implement the principles of efficiency and speed as per Article 9 of internal regulation no. 1/2019 (available for consultation on the website www.gpdp.it, doc-web no. 9107633), it was deemed appropriate to address these complaints and reports within the ongoing investigation pursuant to and for the effects of the subsequent Article 10, paragraph 4, of the same regulation (joining of proceedings).
In this case, moreover, the joint handling appeared more suitable to guarantee the right of defense and the need not to aggravate the procedure, also considering the lesser expenditure of time and resources that it objectively entails for the data controller.

1.3. Contestation of Violations
The Office, at the conclusion of the investigation, adopted the aforementioned communication initiating the procedure pursuant to Article 166, paragraph 5 of the Code (Prot. no. 170450/23 of December 28, 2023), in which it first noted that having contacted 746 phone numbers within the telemarketing activities carried out during the period of February-March 2023, which accounted for just over 7% of the total number of phone contacts made for promotional purposes, while the same numbers were registered with the RPO, and therefore under the opt-out mechanism established by current legislation, could constitute a violation of the current regulations on the protection of personal data.
This data, moreover, seemed to align with the equally alarming information derived from the responses provided by the Company to the request for information pursuant to Article 157 of the Code. From the arguments provided by Eni Plenitude regarding the numerous complaints received by the Authority, it emerged that only 13% of the phone contacts had been made in compliance with legal requirements, while the remaining 87% of cases were allegedly attributable to third-party responsibility.
In this latter percentage, the Company included a series of contacts made during the implementation of measures to comply with the regulations on the RPO, although at the time of the contacts the Register was already fully operational.
The Authority also noted that from the documentation on file and the responses provided by the Company, it emerged that there was a lack of appropriate measures and controls to ensure the traceability of operations carried out on the company systems and to guarantee the legality of the entire processing chain that, starting from the phone contact, leads to the conclusion of the contract. Nor was there any evidence that a mechanism for monitoring and blocking contracts originating from an illicit contact ab origine had been implemented.
Similar critical issues emerged concerning the fulfillment of monitoring and oversight duties regarding the actions of data processors and the remediation initiatives in case of evident violations of the current regulations on the protection of personal data by such subjects.
With the same communication, the Office also contested the violation of the principles set forth in Article 5 of the Regulation due to evident delays.
in the update of customer records. Finally, the contradiction of the circumstances identified through the provided verifications was noted, given that the Company had declared it was relying solely on two list providers, but then in the body of the various submissions made reference to multiple sub-agencies.
The Office, in summary, contested Eni Plenitude for the possible violation of Articles 5, paragraph 1, letters a), d) and f), 5, paragraph 2, 6, paragraph 1, letter a), 24 paragraph 1, 25 and 28 of the Regulation, as well as Article 130, paragraphs 3 and 3-bis, of the Code, for having processed personal data of users and contractors in the energy sector in violation of the principles of lawfulness and accountability, in the absence of an appropriate legal basis and implementing inadequate technical

and organizational measures to ensure, from the design stage, and to be able to demonstrate, that the processing is carried out in accordance with the Regulation.

2. THE DEFENSE OF THE DATA CONTROLLER

With note Prot. No. 569/24 of January 3, 2024, the Company requested a 60-day extension of the deadline for the defense referred to in Article 166, paragraph 6, of the Code and to be heard by the Authority on a date subsequent to the expiration of that deadline. More specifically, in this context, Eni Plenitude noted that the granting of a longer period than the 15 days provided for by Article 13 of internal regulation No. 1/2019 was justified by the circumstance that the Authority had attached new elements to the communication pursuant to Article 166, paragraph 5 of the Code (cf. five complaints and the outcomes of checks at the FUB), as well as by the complexity of the issues subject to the procedure and the dimensional characteristics of the Company. On this point, Eni Plenitude also emphasized that Article 13, paragraph 3, of internal regulation No. 1/2019 should "be interpreted to mean that the extension can also exceed 15 days in the presence of objective needs represented by the recipient of the measure, in order to ensure the effectiveness of the right of defense."

With note Prot. No. 3844 of January 11, 2024, the Office partially accepted the request, granting an extension of the deadline referred to in Article 166, paragraph 6, of the Code up to 15 days and stating that the files attached to the aforementioned communication of December 28, 2023, and those that arose during the procedure, were objectively few in number, concerned the same issues as those attached to the request for information pursuant to Article 157 of the Code, and in most cases, the data controller was already aware of them, either because they were copied in the reports or because they had already provided feedback to the interested party.

With the same note, the Office also stated that Article 166, paragraph 6, of the Code and Articles 12 and 13 of regulation No. 1/2019 of the Guarantor's Office (in www.gpdp.it, doc. web No. 9107633) provide for the data controller, as the ordinary deadline for the submission of defensive memoranda and requests for a hearing, a period of 30 days from the receipt of the notice. The possible "short" extension, normally not exceeding 15 days, can be granted "according to proportionality criteria also in relation to the operational/dimensional characteristics of the recipients themselves and the complexity of the matter under consideration." A 60-day extension, which would effectively extend the deadline for submitting defensive writings to 90 days (3 months), in the opinion of the Office, appeared not to comply with such proportionality criteria, both due to the type of investigation (purely documentary) and considering the operational-dimensional characteristics of the company, which represents one of the main economic-business realities of the Country, equipped with significant legal and organizational resources.

Finally, the Office stated that granting such a wide extension did not appear compatible with the practice consistently followed towards other data controllers, nor with the needs for economy and reasonable duration of the procedure. With a subsequent request dated January 19, 2024 (cf. Prot. No. 7707 of January 22, 2024), Eni Plenitude requested access to the documents of the procedure, with particular reference to the request for information pursuant to Article 157 of the Code sent to the FUB and the documentation related to complaints No. 286606 and 322104. Thus, with note Prot. No. 9274 of January 24, 2024, the Office notified a third party, granting a deadline for the submission of any observations. Finally, with subsequent communication Prot. No. 14721 of February 6, 2024, the Office communicated that "having examined the reasons illustrated and considering the lack of opposition and/or transmission of observations by the third party, the request for access to the documents contained in file No. 322104 is accepted (...). With reference to the further documentation requested (...) All documentation related to the investigation is already in the full availability of this Company, as it was transmitted by the Office together with the request for information pursuant to Article 157 of the Code and the subsequent communication initiating the procedure pursuant to Article 166 of the same Code. The only document not yet transmitted – which is being attached to this, in acceptance of the aforementioned request (Annex 2) – is the request for information pursuant to Article 157 of the Code sent by the Authority to the FUB regarding the list of telephone numbers subject to verification by Eni Plenitude itself (see telephone contacts made in the "sample" week) and of which, in

any case, there have been...
shared the findings, in the form of an attachment to the aforementioned notification of alleged violations. The documentation related to file no. 286608 has already been fully sent along with the aforementioned communication pursuant to Article 166 of the Code. It is noted that attachment no. 3 is included at the end of the file labeled "denunce030723." In any case, the file in question is being transmitted again.

2.1 Preliminary and procedural exceptions raised by the data controller
With defensive memoranda filed on February 12, 2024 (see Prot. no. 17493 of February 13, 2024), the Company preliminarily highlighted the burdensomeness of the request for information pursuant to Article 157 of the Code due to the "short deadlines assigned for responses," the extent of the time frame of the request, and the additional and simultaneous requests for information received by the Company from another department of the same Authority.
The Company then noted that the correctness of the governance adopted for managing telephone contact activities for promotional and sales purposes had already been addressed in the Authority's decision no. 232/2019 and that nevertheless "on the night of December 28, 2023, after six months of silence, the Authority notified Plenitude of the initiation of the procedure," also contesting "entirely new elements: (a) five new complaints, on which the Company had to conduct internal investigations, moreover without having had the opportunity to engage with the Guarantor during the investigative phase of the procedure assigned to this; and (b) a response received from the Authority on August 29, 2023, from the Ugo Bordoni Foundation (...) completely unbeknownst to Plenitude and not shared during the preliminary investigation, asking to verify for each of the telephone numbers provided by Plenitude with the First Response 'the possible registration in the Public Register of Oppositions.'

Eni Plenitude then highlighted that the Office had granted an extension of the deadline referred to in Article 166, paragraph 5, "of only 15 days" and that the response to the access request submitted by the Company was transmitted only on February 6, 2024 "a few days before the deadline for submitting written observations."
Furthermore, the company raised the violation of the 120-day deadline for notifying the communication pursuant to Article 166, paragraph 5 of the Code, as provided in Table B of internal regulation no. 2/2019 (available for consultation on the website www.gpdp.it, doc-web no. 9107640), identifying the starting date as "June 29, 2023, when Plenitude transmitted the last response to the information request of May 11, 2023" and representing that the deadline for notifying the contestation was November 27, 2023.
On this point, Eni Plenitude also noted that the aforementioned deadline could not start from the date of the FUB's response to the request for information, since the request pursuant to Article 157 of the Code and the response occurred during the suspension period of deadlines (see August 1-31), that the Company had not been informed of this request and therefore had relied on the passage of time, that the Authority at the time of the request to the FUB had already had over 30 days for its reflections, and that therefore the claim to reset "the deadline by unilaterally starting it from the request to the FUB" was inadmissible.
Eni Plenitude then raised the violation of the principle of due process and stated that the allegations made are the result of misunderstandings of the facts due to the lack of an effective contradiction and collaboration, as the Authority:
i. "has kept the complaints and reports (...) for over a year and a half";
ii. "with the request for information of May 11, 2023, initiated autonomous investigations largely independent of one another (that is, the response related to the so-called sample week and the response on individual complaints together with the update related to the report on the phenomenon of suspicious calls from March 2021)";
iii. "has formulated generic and aseptic questions (...) raising surprise and merely hypothetical allegations";
iv. "while Plenitude was engaged in responding within the very short deadlines to the request of May 11, 2023, simultaneously transmitted to Plenitude further requests for information related to completely different issues and subject to further new investigations on June 9 and 14, 2023";

v. did not communicate the sending of the request to the FUB and with the contestation deduced entirely new facts and circumstances, without granting an extension of the deadline for defense;
vi. delayed granting access to the documents.
Eni Plenitude finally contested the violation of the principle of ne bis in idem and legitimate reliance, noting that the facts subject to the investigation conducted in 2023 had already been examined by the Guarantor during the investigation of 2019, concluded with the adoption of decision no. 232/19 and that the corrective measures implemented in compliance with that decision had been agreed upon with the same Authority.

2.2 Merits exceptions raised by the data controller
On the merits, the Company requested the dismissal of the procedure due to the absence of the subjective element of fault, as provided for in Article 3 of Law no. 389/1981, as a minimum requirement for the application of administrative sanctions, since "Plenitude not only complied with the measures prescribed by the Authority with decision no. 232/2019 but has also had until now the legitimate...
Expectation that the measures previously represented during the investigation were deemed adequate.

With specific reference to the 747 numbers registered with the RPO and related to the purchase proposals that occurred during the so-called sample week, Eni Plenitude represented that "these numbers do not necessarily correspond to those used for contacts within promotional campaigns, as during telephone contacts various customers request to include in the contractual proposals phone numbers different from those on which they were contacted." In this regard, the Company also noted that not all numbers need to be verified in advance with the RPO, but that this necessity depends on the target audience (customers, potential customers, former customers) and the sales channel used.

In the case of promotional campaigns aimed at customers, the Company considers verification with the RPO unnecessary, since for outbound teleselling, contact lists are created based on the specific consent for telemarketing activities provided within the contractual relationship, in line with what is provided by Article 1, paragraph 5, of Law No. 5/2018. For the assisted web channel, on the other hand, it is the customer who has expressed, through the appropriate contact form, the desire to be called for commercial purposes.

Conversely, in the case of promotional campaigns aimed at potential customers (so-called prospects) conducted through the outbound teleselling channel, the Company explained that contact lists are always verified in advance with the RPO, except for co-marketing campaigns, which are conducted towards the customers of Eni Plenitude's commercial partners based on specific consent provided to the partners by their customers. Within the comparator and assisted web channels, however, it is the potential customer who requests the telephone contact, which occurs immediately upon request.

In the context of promotional campaigns aimed at former customers, conducted through the outbound teleselling channel and directed at customers who have ceased their relationship for less than 30 days, contact is made based on the consent given within the contractual relationship pursuant to Article 1, paragraph 5 of Law No. 5/2018. Conversely, the lists of customers who have ceased their relationship for more than thirty days are verified in advance with the RPO.

Furthermore, with reference to the 747 contacts made during the so-called sample week, Eni Plenitude noted that:
- 89 numbers do not correspond to those used for telephone contacts;
- 381 numbers were contacted through the comparator channel based on the consents expressed on the portals;
- 179 numbers were contacted through the assisted web channel;
- 80 numbers were contacted as part of campaigns aimed at customers based on consents given within the contractual relationships;
- 17 numbers were contacted as part of co-marketing campaigns;
- 1 number directly contacted the partner's number of the Company.

In relation to the complaints received by the Authority, the Company referred to the division into 5 macro-categories made during the responses to the request for information pursuant to Article 157 of the Code and specifically regarding the complaints attached to the communication pursuant to Article 166, paragraph 5, of the Code, it argued that they were not subject to specific investigation. On this point, the Company nonetheless noted that files no. 314553, 315372, and 322104 can be classified as legitimate contacts, file no. 328844 is the result of a so-called suspicious call from third parties, and file no. 286608 cannot be attributed to any macro-category and therefore cannot be considered homogeneous with respect to the other complaints.

For the same reasons, Eni Plenitude then contested the unfoundedness of the allegation regarding the absence of adequate control and monitoring measures for the phase of loading contractual proposals, reiterating that the lack of tracking of the IP address of the workstation that performed the upload does not demonstrate the general absence of measures aimed at preventing the infiltration into the Company's systems of proposals generated by parties outside the sales network, that there is no evidence in the company systems of the presence of illicit proposals, and that none of the suspicious calls from third parties resulted in a purchase proposal.

The Company reiterated its commitment to combating the phenomenon of suspicious calls from third parties and that it does not derive any economic advantage from them, as they are made by competitors who illegally use the name of Eni Plenitude in an attempt to offer energy services provided by other operators.

Finally, Eni Plenitude contested the significance of best practices attributed to the Code of Conduct for telemarketing and teleselling activities, noting that it constitutes a "proposal for consolidation and an attempt to reorganize in a single document the guidelines expressed by the Authority. The Code does not absolutely represent the state of the art adopted by all market operators and, in any case, provides certain measures, including IP address tracking, only as a simplification."

In this regard, the Company also noted that based on the specificities of its sales chain, it has assessed the IP address as "an unnecessarily and excessively invasive measure" compared to the benefits provided by the various safeguards adopted in terms of due diligence and monitoring.
of the partners (so-called privacy induction).

In relation to the disputes raised regarding the commercial chain, Eni Plenitude highlighted that in recent years the relationship between the number of agencies and the volume of business has become inversely proportional, that the partners involved in cases classified as "illegitimate contacts" had been appointed data processors pursuant to Article 28 of the Regulation and therefore acted in violation of the instructions given. Furthermore, the same partners had noticed the illegitimate conduct carried out by their agents and had removed them even before the initiation of the preliminary investigation by the Authority. In any case, thanks to the timely intervention, the agents in question had not generated any contractual proposal.

Eni Plenitude then argued the unfounded nature of the allegation regarding the lack of separation measures for the databases used by multi-mandate agencies, deducing the absence of evidentiary elements and attributing such telephone contacts to human error. Regarding the contacts made during the so-called sample week and classified as "FUB in the process of activation," Eni Plenitude clarified that these are "telephone contacts made to numbers registered with the RPO during the completion of Plenitude's internal process for compliance with the new RPO rules, which was concluded with a delay of just about 30 days," due to the delay in the publication of price lists by the FUB and the time required for the complete updating of internal processes.

Finally, with reference to the violation of the principle of accuracy of the processed data (see file 183604), Eni Plenitude contested the observations regarding the timing of contact and stated that in this case it was "an exceptional and entirely isolated case arising from the initial configuration of CoEVO in 2019, now consolidated for years, which cannot therefore constitute an element to base the systemic contestation that the Authority addresses to Plenitude, given that evidently no further circumstances have emerged from the preliminary investigation that could demonstrate the existence of critical issues at the process level."

2.3 The hearing pursuant to Article 166, paragraph 6 of the Code.

During the hearing held on February 20, 2024, at the offices of the Authority, the Company provided a complete and updated mapping of its commercial chain, including the appointments as Data Processor pursuant to Article 28 of the Regulation. The Company then clarified that in the event of an expression of interest from the customer (via web or telephone) providing their contact details, they are typically re-contacted within a couple of days. Any extensions of this time frame are due to the coincidence of holidays, weekends, or in cases where the customer does not respond. The lead is considered "warm," meaning usable for potential re-contacts, for 15 days, after which no further contacts are made.

Regarding co-marketing activities, the Company explained that such campaigns are carried out using the customer base of the respective companies, which have previously obtained the customer's consent. For example, in the context of co-marketing campaigns with XX, the list is passed from XX to its partner tele-seller. The user is initially contacted on behalf of XX and, if they express interest in Eni Plenitude's offer, the tele-seller then acts no longer as an external data processor for XX, but in the capacity of data processor on behalf of Eni Plenitude and proceeds to submit the contractual proposal to the customer.

Finally, with reference to the so-called win-back activities, it emerged that the Company makes attempts to contact former customers to understand the reasons for the change of supplier and verify interest in a new offer, after verifying the existence of marketing consent. Such activities are carried out within 30 days from the termination of the contract.

3. AUTHORITY'S EVALUATIONS

From the elements that emerged during the investigation and from the examination of the defense presented by the Company, as will be argued more extensively and analytically below, all the hypotheses of violation formulated through the communication of the initiation of the procedure pursuant to Article 166, paragraph 6, of the Code appear to be definitively established.

3.1 Preliminary and procedural issues

The preliminary and procedural exceptions raised by the Company cannot be accepted as they are pretextual and clearly devoid of foundation. In this case, Eni Plenitude has preliminarily argued the violation of the principle of due process and ne bis in idem, for the Authority having opened a new investigation, despite the adoption of provisions no. 231 and 232 of December 11, 2019, having simultaneously notified multiple requests for information and rejected the request for an extension of the deadlines granted for the response.

The invoked prohibition of ne bis in idem, of notable penal origin, can be inferred from the provisions of Article 649 of the Code of Criminal Procedure, which establishes the prohibition of subjecting a defendant who has been acquitted or definitively convicted for the same fact to a new trial, even if considered differently in terms of title, degree, or circumstances. This principle undoubtedly represents, besides a standard of civilization, a fundamental right of the person. Indeed, it is true that even at the level of supranational legislation, similar provisions can be found both in the wording of Article 50.
of the Charter of Fundamental Rights of the European Union, which states that "No one may be prosecuted or punished for an offense for which he or she has already been acquitted or convicted in the Union following a final criminal judgment in accordance with the law," and in Protocol No. 7, Article 4 of the ECHR, where it states "1. No one may be prosecuted or punished criminally by the jurisdiction of the same State for an offense for which he or she has already been acquitted or convicted following a final judgment in accordance with the law and the criminal procedure of that State. 2. The provisions of the preceding paragraph do not prevent the reopening of the case, in accordance with the law and the criminal procedure of the State concerned, if new facts or revelations or a fundamental defect in the previous procedure are capable of undermining the judgment rendered. 3. No derogation from this article is permitted under Article 15 of the Convention."

According to the constant orientation of the jurisprudence, the identity of the fact exists when there is historical-natural correspondence in the configuration of the offense, considered in all its constitutive elements (conduct, event, causal link) and with regard to the circumstances of time, place, and person.

With reference to proceedings before Independent Administrative Authorities, the issue of the applicability of the principle in question has historically arisen with particular reference to the so-called double sanctioning system and has been resolved with the well-known and consolidated jurisprudential orientation that considers the principle of ne bis in idem applicable to proceedings initiated before Independent Administrative Authorities when the sanctions actually imposed are of a substantially criminal nature (cf. ECtHR judgment of March 4, 2014, Grande Stevens v. Italy).

Based on European jurisprudence, therefore, regardless of the nomen iuris, those sanctions that can be considered substantially criminal are those that meet the so-called Engel criteria: internal legal qualification; nature of the offense and function of the consequent measure provided, which must be generally applicable and have a preventive and repressive purpose; severity of the sanction.

In this regard, it is also appropriate to recall that the measures of the Guarantor, pursuant to Articles 78 of the Regulation and 152 of the Code, can be challenged before the judiciary through an effective judicial appeal.

It follows that once the deadlines for appealing the Guarantor's decision have expired, or all the means of appeal provided by the legal system have been exhausted, the provisions contained in the measure or in the judgment become definitive and unchallengeable both for the supervisory Authority and for the addressee thereof.

The described procedural cadence constitutes the normative application of the principle of legal certainty, of which the principle of ne bis in idem is a logical corollary.

Although the Authority in 2019 adopted two separate measures against Eni Plenitude (then Eni gas and Luce), concerning facts, complaints, and the privacy governance implemented at the time by the Company, the alleged violation of the principle of ne bis in idem, in this case, cannot be upheld due to the evident absence of the requirement of identity of the natural fact underlying the procedure.

The current investigation, in fact, originates from numerous complaints received by the Authority after the deliberation of measures No. 231 and 232 of 2019 and from the verification carried out within a "sample week" (March 6-13, 2023) on the telephone contacts made during the reference period, which led to the activation of an energy supply.

The identity of the thema decidendum cannot even be artfully invoked based on the circumstance that some of the provisions referred to in the current contestation were also present in the previous procedure, since what violates the principles of legal certainty and the prohibition of ne bis in idem is not merely the legal basis of the reproach, but – it is reiterated – the identity of the natural fact.

Moreover, if this were not the case, hypothetically, after having been the recipient of a first measure, the data controller could repeatedly and at will violate the same provisions, escaping any reproach and/or sanction.

On the other hand, the emphasis on the measures of adjustment to the previous "agreed" measures with the Authority, which the Company seems to invoke as evidence of compliance of its privacy framework with current regulations, cannot be upheld since the orientations expressed by the Office have limited effectiveness to the subject and the historical context in which they were pronounced, also due to the considerable time elapsed and the normative and socio-economic developments that have occurred in the meantime.

This is evidenced by the fact that the Regulation, in more than one provision, imposes on the data controller the obligation to periodically update security measures and its privacy governance, precisely in order to adapt it to the so-called "state of the art," "scope," and "context."

Equally unfounded appears the objection regarding the alleged onerousness of the requests

transmitted by the Authority, since Eni Plenitude has never mentioned this in any of the previous discussions with the Department, but raised this objection for the first time only in the submission of the defense briefs pursuant to Article 166, paragraph
6, of the Code, occurred on February 12, 2024 (see Prot. No. 0017493 of February 13, 2024) and referring to the requests for information sent in June 2023 (i.e., eight months prior). In the opinion of the Company, the principles of due process are violated and the investigation becomes burdensome due to the practice followed by the Office of cumulatively addressing complaints received at different times.

In this regard, it is worth noting that joint investigations are not only provided for by internal regulations, as they align with the principles of efficiency and non-increase of the administrative procedure, but also represent a safeguard for the rights of the data controller.

With reference to the processing of personal data carried out in the context of telemarketing, in fact, the Authority receives thousands of reports. The individual handling of each complaint would not only be practically impossible but would also force the data controller to invest substantial resources in defending its position and would infinitely multiply the proceedings and the resulting sanctions, which would ultimately create a precedent—and thus an aggravating factor—for the other.

Nor can the alleged burdensomeness of the procedure and the asserted violation of procedural norms be attributed to the fact that the Office contested for the first time in the communication pursuant to Article 166, paragraph 5, of the Code what emerged in relation to the five complaints/reports that arose during the investigation against the same Company. In fact, prior communication with the party, for example, through the request for information pursuant to Article 157 of the Code, constitutes only one of the possible and eventual investigative methodologies provided by law.

It follows that, in cases where it is not necessary to acquire further investigative elements, the Authority can validly and directly proceed to contest the violation based on the circumstances acquired through the complaints and reports. In such cases, moreover, the right to defense and the right to a fair hearing are nonetheless guaranteed by the possibility granted to the party to submit documents and statements within 30 days from the notification of the communication, as well as the request to be heard by the Authority.

Finally, the alleged violation of the principle of due process and internal regulations, in relation to the failure to grant an extension of the defense term pursuant to Article 166, paragraph 6, of the Code and the alleged delay in accepting the access request, does not appear to be shareable, given that the Company was already in possession of all the investigative documentation, as it was a direct recipient of the complaints or because it had already been transmitted to it by the Authority.

Article 13 of internal regulation No. 1/2019 provides that normally the term for exercising the right to defense is 30 days, but that upon a justified request, this term may be extended normally up to 15 days, according to proportionality criteria also in relation to the operational/dimensional characteristics of the recipients themselves and the complexity of the matter under examination. It follows that only in exceptional cases can a term longer than the aforementioned 15 days be granted.

In this case, having examined the reasons put forward by the Company, considering the purely documentary nature of the procedure and the issues that arose, the dimensional characteristics of the company, and that Eni Plenitude was already aware of almost all the complaints, it is beyond doubt that there were no circumstances justifying the granting of a term longer than the aforementioned 15 days.

Additionally, it is appropriate to note that in multiple entirely analogous investigations (including the previous one against Eni Gas e Luce – now Eni Plenitude), from which the adoption of provision No. 232 of December 11, 2019, derived, the Office has consistently granted an extension of 15 days, and no exceptions have ever been raised in this regard. Moreover, the request appeared at first glance to be pretextual and aimed at creating a potential ground for complaint, not only due to the absence of exceptional reasons and/or circumstances to support it but also because it would have the effect of tripling the ordinarily granted term, in disregard of the principles of equal treatment and reasonable duration of the procedure.

Equally pretextual and aimed at creating grounds for complaint is the exception regarding the alleged delay in accepting the request for access to documents as lamented by the Company.

To prove this, it would suffice to observe the timing of the request submitted on January 19, 2024, and thus one week before the expiration of the term pursuant to Article 166, paragraph 6 of the Code. Based on the practice consistently followed by the Office, all documents and elements useful for exercising the right to defense and for a comprehensive examination of the issues subject to the investigation are transmitted along with the request for information pursuant to Article 157 of the Code and the communication of the initiation of the procedure pursuant to Article 166, paragraph 5, of the Code, except for documentation that is excessive, irrelevant, or covered by secrecy.

In this case, the only documents that had not been attached to the aforementioned communications were correspondence that was entirely irrelevant for the purposes of the defense, considering that:
- all findings from the verification at the FUB had already been shared (i.e., Excel files with...
the absence of a valid legal basis.

3.2 Merits Issues
Even on the merits, the allegations raised against Eni Plenitude appear to be fully supported by the evidence gathered through the numerous complaints received by the Authority, the results of the sample investigations conducted, and the circumstances that emerged during the proceedings.
Firstly, it is exceedingly proven that there has been a violation of Articles 5 par. 1, lett. a), 5 par. 2, and 6 of the Regulation and Article 130 of the Code, as the Company engaged in telemarketing activities without a suitable legal basis and contacted multiple interested parties during the process of the Company's compliance with the RPO regulations.
Regarding the identified delay in the adjustment operations to the provisions of Article 130 of the Code, it is appropriate to note that the violation is not only substantiated by the numerous complaints received by the Guarantor and the checks carried out but also by the statements made during the proceedings by Eni Plenitude itself.
The Company, in fact, with reference to 8 complaints received by the Authority, admitted that it did not timely comply with the relevant regulations due to the lack of publication of the price lists by the FUB. Although this issue is known to the Office, it should be noted that Eni Plenitude could have awaited the publication of the price lists or diversified its advertising activities—as other operators have done—rather than continuing its marketing campaigns without conducting the appropriate checks with the RPO.
Similarly, the process of managing the contactability lists, as represented by the Company, does not appear to be entirely compliant with the letter and spirit of the referenced regulations.
Regarding promotional campaigns directed at customers through the outbound teleselling channel, the Company stated that it did not consider it necessary to verify with the RPO and conducted such processing based on the specific consent granted within the contractual relationship pursuant to Article 1, paragraph 5, of Law No. 5/2018.
However, the proceedings do not indicate that the Company has implemented the prescribed simplified methods to allow for the easy revocation of such consents (cf. Article 1, paragraph 5, of Law No. 5/2018: "(...) Consents granted within the framework of specific contractual relationships in existence, or terminated no more than thirty days prior, concerning the supply of goods or services are nonetheless preserved, for which the right of revocation is ensured through simplified procedures.").
Consequently, the contactability lists could not be used without prior verification with the RPO, and as a result, such telephone contacts were made in the absence of a valid legal basis.
Violation of Data Protection Regulations

In relation to co-marketing campaigns, Eni Plenitude has stated that these are directed at customers of partner companies who have previously given consent and who show interest in Eni Plenitude's offers. In such cases, the lists are not subject to verification with the RPO, and the phone contact is made by a person who first acts as the data processor for the partner company and then, in case of interest in the offer, as the data processor for Eni Plenitude. The practice just described, which raises concerns regarding transparency and fairness of processing and commercial practices, does not appear to be legitimate or compliant with the regulatory framework, as it effectively serves as a ruse to circumvent the provisions of Article 130 of the Code and Articles 5 and 6 of the Regulation, as well as the obligation to consult the RPO before carrying out a marketing campaign.

The treatments in question, therefore, appear to have been carried out in the absence of an appropriate legal basis and adequate technical and organizational measures, considering that on one hand, the original consent cannot justify the execution of treatments for diversified purposes and the transfer of data from one controller to another. On the other hand, it does not appear that suitable security measures have been implemented to ensure the separation of customer records belonging exclusively to Eni Plenitude, those attributable to both Eni and partner companies, and those belonging exclusively to the partners.

Similarly, the management of so-called win-back campaigns presents multiple critical issues. In this regard, the Company has stated that pursuant to Article 1, paragraph 5 of Law No. 5/2018, customers who have ceased to be clients for less than 30 days are contacted without prior verification with the RPO, while campaigns aimed at customers who have ceased to be clients for more than 30 days require such verification.

However, as previously noted regarding marketing campaigns directed at customers, the aforementioned regulation cannot be applied in the absence of the implementation of simplified procedures for exercising the right of withdrawal. Consequently, these treatments are also carried out in the absence of an appropriate legal basis and in violation of data protection regulations.

Moreover, from the feedback provided regarding the individual complaints received by the Authority, further critical issues emerge concerning the so-called win-back campaigns, particularly regarding their timing and attempts at re-contact. Indeed, while it is indisputable that there may be a legitimate basis for contact campaigns directed at former customers and a mutual interest from both parties, such activities must be contained within reasonable time limits (corresponding to the data retention period for treatments with promotional purposes) and attempts at re-contact; otherwise, they may result in an undue intrusion into the personal sphere of the data subject that could potentially be unlimited in time.

For example, regarding file No. 185620, the phone contact that is the subject of the report occurred on August 25, 2022, even though Eni Plenitude itself admitted that the customer had ceased to be a client four years earlier (see January 2, 2018). Similarly, regarding file No. 185972, the phone contact that is the subject of the report occurred on August 30, 2022, even though the customer had ceased to be a client two years earlier (see August 31, 2020).

According to the Company's statements, another case of marketing activities not subject to prior verification with the RPO concerns so-called hot leads, referring to those individuals who express interest in receiving a commercial offer from Eni Plenitude either by phone or online and who are therefore considered contactable for the 15 days following such expression of interest.

This prolonged period of contactability also does not appear to be entirely compliant with the regulatory framework and seems to confuse pre-contractual interest in the offer with the granting of true consent to processing for marketing purposes. Moreover, if conversely, this practice were deemed legitimate, the data subject would be left unprotected because they could not revoke marketing consent—never granted—either by submitting a request directly to the controller or by registering with the RPO. The data subject could only object at the time of contact, thus to an unwanted call already received, resulting in an inadmissible lack of protection. This perspective seems even more paradoxical considering that no provision in the Code, the Regulation, or Law No. 5/2018 exempts the data controller from verifying with the RPO the data of the data subjects intended for promotional contact within 15 days following the collection of such data; rather, the aforementioned regulations impose such verification before carrying out any promotional campaign.

In light of these observations, therefore, regarding the 747 contacts made during the so-called sample

week, at least the following 657 must be considered illegitimately made:
- 381 numbers were contacted through the comparator channel based on the expressed consents given on the portals;
- 179 numbers were contacted via the assisted web channel;
- 80 numbers were contacted as part of campaigns directed at customers based on consents given within the framework of contractual relationships;
- 17 numbers were contacted as part of co-marketing campaigns.

The data is extremely alarming considering that multiplying 657 contracts concluded following an initially unlawful contact that occurred during the so-called sample week, by the working weeks present in a year, we would hypothetically obtain that the Company would have accrued in one year the revenues from approximately 32,850 supplies that should never have been activated.

Equally valid were the criticisms regarding the failure to implement security measures and an effective monitoring and control structure over the entire commercial chain of processing that "from contact allows one to reach the contract," resulting in a violation of Articles 5, 24, 25, and 28 of the Regulation.

In this regard, the exception raised concerning the failure to implement a tracking system for the contracts entered into the company systems was entirely contradictory, considering that the Company declared it had established a working team for compliance with the Code of Conduct and then challenged its validity as best practices.

In any case, with the entry into force of the Regulation and the principle of accountability, it is no longer the regulation that defines the minimum and mandatory measures that the data controller is required to adopt; it is, in fact, up to the data controller to identify the most appropriate technical and organizational security measures in relation to the state of the art, the specificities of its own organization, and the context, and to demonstrate compliance (Article 5, § 2, of the Regulation).

It follows that the measures and precautions provided for by the Code of Conduct (approved by the Guarantor with provision no. 70 of March 9, 2023, at www.gpdp.it, web doc no. 9868813), particularly those established by Article 5, paragraph 8, assume, regardless of the full effectiveness of the same and the adherence of the controllers, a corpus of best practices to customize, integrate, and appropriately adapt to the specificities of the individual organization and to the concrete risks to the rights and freedoms of the data subjects.

Therefore, the failure to adopt any of the measures provided therein cannot automatically constitute a violation of the legislation on personal data protection, but based on careful evaluations to be conducted on a case-by-case basis, it may be a symptomatic indicator, especially in cases of failure to implement precautions suitable to mitigate the same type of risk to which the measure provided by the Code was intended.
In this case, therefore, the Company not only failed to adopt a series of measures and precautions that are notoriously regarded as best practices, which are also reflected in a widely shared sector Code with the major representatives of the involved categories, but it also did not demonstrate that it had adopted equally suitable measures to prevent the risk that contracts concluded based on an initially unlawful contact could enter the company systems.
From the elements emerged through the complaints submitted to the Authority and from the sample checks carried out, a serious gap was instead ascertained precisely in relation to the control and monitoring activities carried out on the agencies and sub-agencies.
The performance of merely formal checks, limited only to the removal of the individual agent who violated the instructions given or to the conducting of audits only in cases of anomalies, if not accompanied by the implementation of measures aimed at preventing the entry into the company systems of contracts concluded based on telephone contacts that should never have occurred, is not alone sufficient to ensure full compliance with the regulatory provisions.
More than one complaint was attributed by the Company to the actions of agents who were later removed, but this did not result, for example, in any further verification of the contracts entered by the same agent or the same agency, not even in cases of recurring violations.
Similarly, no remedial measures or repressive conduct were adopted towards those agents who, by the Company's own admission, made telephone contacts "not on behalf of Eni Plenitude," since it is evident that there has been an unlawful mixing of databases resulting in unlawful processing of personal data.
Finally, it must also be confirmed that there has been a violation of Article 5 of the Regulation in relation to report no. 183604, in the part that provides that personal data must be accurate and, if necessary, updated by adopting all reasonable measures to promptly delete or rectify inaccurate

data concerning the purposes for which they were processed, attributable to a delay in updating the related registry in the company systems, as admitted by the Company in its defense writings.
In relation to the alleged violations and contrary to what the Company claimed, it must also be considered that the subjective requirement of the violation exists at least in terms of fault. Considering that Eni Plenitude was the direct recipient of more than one complaint, has implemented various reporting channels, was aware of the removal of certain agents, and has nonetheless gained significant economic benefit from the conduct subject to criticism, it was therefore also aware of the resulting events in the terms described above.
Therefore, the responsibility of Eni Plenitude regarding the alleged violations must be definitively confirmed through the communication of the initiation of the procedure pursuant to Article 166, paragraph 5 of the Code.

4. CONCLUSIONS
Based on the above, the responsibility of Eni Plenitude regarding the following violations is deemed established:
a) Articles 5, paragraph 1, letters a), d) and f) and paragraph 2 of the Regulation for having processed personal data in violation of the principles of lawfulness, fairness, transparency, accuracy, and security;
b) Articles 5 paragraph 1, letters a), d), 5 paragraph 2, and 6 of the Regulation and Article 130 of the Code for having carried out telemarketing activities without an appropriate legal basis;
c) Articles 5 paragraph 1, letter f), 5 paragraph 2, 24, 25, and 28 of the Regulation for the failure to implement appropriate security measures, as well as monitoring and control over the entire commercial chain that leads from contact to contract.
It has also been established that the conduct of the Company regarding the examined processing is unlawful, thus it is necessary to:
- impose on Eni Plenitude, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the data of the complainants and whistleblowers;
- order Eni Plenitude, pursuant to Article 58, paragraph 2, letters d) and e) of the Regulation, to communicate to the 657 interested parties, whose personal data have entered the Company's systems following unlawful contacts, the outcomes of today's procedure based on a text to be agreed upon with the Authority in the application of this provision;
- order Eni Plenitude, pursuant to Article 58, paragraph 2, letter d) to implement adequate controls within its sales network and appropriate system implementations, in order to exclude that contracts generated from unlawful contacts may enter the company's assets;
- order Eni Plenitude, pursuant to Article 58, paragraph 2, letter d) to implement adequate measures to ensure that personal data processing is carried out in compliance with the principles established in Article 5 of the Regulation;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Eni Plenitude of the administrative pecuniary sanction provided for in Article 83, paragraphs 3 and 5, of the Regulation.

5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION
The violations indicated above require the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Eni Plenitude of the administrative pecuniary sanction provided for in Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies, up to 4% of the annual global turnover

of the previous financial year, if higher).
For the determination of the maximum applicable sanction, reference must be made to the turnover of Eni Plenitude, as derived from the ordinary financial statements for the year 2022, in accordance with previous measures adopted by the Authority and with the indications contained in the "Guidelines No. 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR," and therefore this maximum applicable amount is determined, in this case, at €320,981,542.00.
For the determination of the amount of the sanction, account must be taken of the elements indicated in Article 83, paragraph 2, of the Regulation;
In this case, the following factors are relevant:
1) the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the processed data, related to the overall phenomenon of telemarketing, regarding which the Authority has adopted, particularly in the last three years, numerous measures that have thoroughly examined the multiple elements of criticality, providing the data controllers with numerous indications to adapt the processing to the current legislation and to mitigate the impact of nuisance calls on the interested parties;
2) as a mitigating factor, the circumstance that Eni Plenitude has promptly complied with the prescriptions imposed by the approval of previous measures (Article 83, paragraph 2, letter i) of the Regulation);
3) the circumstance that, in the previous sanctioning measures adopted by the Guarantor (Nos. 231 and 232 of December 11, 2019), Eni Plenitude settled the dispute with a reduced payment, which determines, pursuant to Article 8-bis, paragraph 5, of Law No. 681/1989, the non-applicability of the aggravating factor referred to in Article 83, paragraph 2, letter e).
Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for in Article 83, paragraph 1, of the Regulation, it is deemed appropriate to apply to Eni Plenitude the administrative sanction of payment of an amount of €6,419,631.00 (six million four hundred nineteen thousand six hundred thirty-one/00), equal to 2% of the maximum applicable sanction.
In this case, it is deemed appropriate to apply the ancillary sanction of publication on the Guarantor's website of this provision, as provided for in Article 166, paragraph 7 of the Code and Article 16 of the Guarantor Regulation No. 1/2019, taking into account the nature of the processing and the conduct of the Company, as well as the risk elements for the rights and freedoms of the interested parties.
Finally, the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at ensuring...
Execution of tasks and the exercise of powers entrusted to the Authority.

WHEREAS, THE AUTHORITY

a) imposes on Eni Plenitude, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the data of whistleblowers and complainants;

b) orders Eni Plenitude, pursuant to Article 58, paragraph 2, letters d) and e) of the Regulation, to communicate to the 657 interested parties, whose personal data has entered the Company’s systems as a result of unlawful contacts, the outcomes of today’s proceedings based on a text to be agreed upon with the Authority in the application of this provision;

c) orders Eni Plenitude, pursuant to Article 58, paragraph 2, letter d) to implement adequate controls within its sales network and appropriate system enhancements, in order to exclude that contracts generated from unlawful contacts may enter the company’s assets;

d) orders Eni Plenitude, pursuant to Article 58, paragraph 2, letter d) to adopt adequate measures to ensure that personal data processing is carried out in compliance with the principles established in Article 5 of the Regulation;

e) orders Eni Plenitude, pursuant to Article 157 of the Code, to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation;

ORDERS

Eni Plenitude S.p.A. Benefit Company, with registered office in San Donato Milanese (MI), Piazza Vanoni n. 1, VAT number 12300020158, to pay the sum of €6,419,631.00 (six million four hundred nineteen thousand six hundred thirty-one/00) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by complying with the prescribed measures and paying, within thirty days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €6,419,631.00 (six million four hundred nineteen thousand six hundred thirty-one/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

DISPOSES

The application of the accessory sanction of publication on the Authority's website of this provision, as provided for by Articles 166, paragraph 7 of the Code and 16 of the Authority's Regulation No. 1/2019, and the annotation of the same in the internal register of the Authority - as provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at the execution of tasks and the exercise of powers entrusted to the Authority - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed with the ordinary court of the place where the data controller is located, within thirty days from the date of communication of the provision itself.

Rome, June 6, 2024

THE PRESIDENT
Stanzione

THE RAPPORTEUR
Stanzione

THE SECRETARY GENERAL
Mattei